

		or omissions of Supplier, any Supplier Personnel[.] (XC ¶ 7.) Here, the Cross-Complaint does not allege any facts that could constitute negligence or wrongful acts or omissions by Universal. To the contrary, the Cross-Complaint alleges that “Plaintiff has filed a premises liability claim against Rivian Automotive LLC, alleging that the exterior stairway at 40 Parker was dangerous due to poor lighting and improper maintenance, which caused his injury. Plaintiff’s Complaint alleges that Cross-Complainant owned and controlled the property at 40 Parker and that the premises were unsafe for invitees due to the conditions of the stairs.” (XC ¶ 6.) Thus, no facts have been pled which would give rise to liability on the part of Universal based on the Master Purchase Agreement. Accordingly, the demurrer is sustained as to the entirety of the Cross-Complaint with 20 days leave to amend. Universal’s unopposed request for judicial notice is granted. (See Evid. Code, § 452, subds. (d), (h); Lake v. Lakewood Chiropractic Center (1993) 20 Cal.App.4th 47, 53 [workers’ compensation records].) Moving party to give notice.
105	Carranza v. Corbin Reeves Construction, 2025-01520792	DEMURRER TO COMPLAINT – SUSTAINED WITH LEAVE TO AMEND DEMURRER TO COMPLAINT – SUSTAINED WITH LEAVE TO AMEND MOTION TO STRIKE – GRANTED WITH LEAVE TO AMEND Plaintiff Boris Carranza sued numerous defendants for injuries suffered on September 11, 2024. The extent of the factual information provided by Plaintiff in the form complaint is: “Defendants, and each of them, negligently owned, occupied, and/or controlled the property located at 1801 Bayadere Terrace, Corona Del Mar, CA 92625. Defendants were negligent in the manner in which they owned, maintained, managed, leased, and operated the

	described property, allowing unguarded, concealed, and unprotected elevator, elevator opening, and/or shaft within the subject home to exist without adequate warning, thereby creating a concealed trap and dangerous condition on the subject premises. Defendants further failed to warn Plaintiff of the hazardous condition, which proximately caused Plaintiff's injuries. Defendants Kurt Fischer Structural Engineering and Derek Wavering demur to the Complaint on the ground Plaintiff failed to file and serve a certificate of merit which is required under Code of Civil Procedure section 411.35 before architects, engineers, or land surveyors are sued for professional negligence. Whether this statute applies to these defendants cannot be determined from the four corners of the complaint, making the complaint uncertain. The demurrer will be sustained with leave to amend. Defendants MA3 Corp. dba Corbin Reeves Construction and Michael D. Reeves (Reeves Defendants) demur to count two of the second cause of action, which alleges premises liability by willful failure to warn under Civil Code section 846. Plaintiff does not allege that the Reeves Defendants are owners of the property in question, nor that Plaintiff was a recreational user of the property. The Reeves Defendants contend that Count Two of the second cause of action fails to state facts sufficient to constitute a cause of action because Civil Code section 846 does not apply to these defendants and this plaintiff. Specifically, they contend that neither Corbin Reeves nor Reeves is a landowner within the meaning of Civil Code section 846, and that the Complaint pleads no facts establishing that Plaintiff was a recreational user. The demurrer will be sustained with leave to amend. The Reeves Defendants also move to strike the name "Michael David Reeves" wherever it appears in the Complaint as a named individual defendant. The Reeves Defendants contend that under California law, a corporate officer or director is not personally liable for torts committed by the corporation merely by reason of their official position or ownership interest in the
--	---

		company, and that the Complaint contains no allegation that Reeves personally designed, directed, controlled, or performed any act at the construction site independent of his corporate role such that the references to Michael David Reeves as an individual defendant are “irrelevant” and “improper” within the meaning of Code of Civil Procedure section 436(a), and should be stricken. The complaint alleges all Defendants, including Michael David Reeves, were negligent in the manner in which they owned, maintained, managed, leased, and operated the property. The complaint does not sufficiently allege that Reeves authorized, directed, or actively participated in creating the alleged dangerous condition. The Court GRANTS the motion to strike with leave to amend. Plaintiff to file a first amended complaint within 20 days, consistent with the Court’s rulings above. Counsel for the Reeves Defendants to give notice of all rulings. On June 24, 2026, the Court ordered counsel for Plaintiff and counsel for the Reeves Defendants to meet and confer in person, by videoconference, or by telephone, and to meaningfully discuss the issues raised by the demurrer and the motion to strike with an eye toward reducing the number of issues or eliminating the need for the demurrer and/or motion to strike. The Court also ordered counsel for the Reeves Defendants to file a supplemental declaration describing the meet and confer efforts, and specifying what issue(s) was/were resolved, if any, and what issue(s) remain for the Court to resolve, if any. Said supplemental declaration was to be filed and served no later than nine (9) court days before the continued hearing date. (ROA 99.) No supplemental declaration is on file. Despite the failure to file a supplemental declaration, the Court elected to address the merits of the demurrer and motion to strike.
--	--	--

		The Court hereby sets an order to show cause on September 8, 2026, at 9:00 a.m. in Department N14, why monetary sanctions should not be imposed on counsel for Plaintiff, The Vartazarian Law Firm, Steve Vartazarian, Matthew J. Whibley, and Margaret Gabuchian, and counsel for the Reeves Defendants, Tyler & Mendes, LLP, and David M. Frishman, pursuant to Code of Civil Procedure section 177.5.
106	Cruz v Carillo, 2024-01394635	MOTION FOR PARTITION OF PROPERTY Plaintiff Freddy Jonathan Cruz moves for an interlocutory judgment of partition by sale pursuant to Code of Civil Procedure section 872.010 et seq. Plaintiff also requests that a referee be appointed to conduct the sale, pursuant to Code of Civil Procedure section 873.010 et seq. In light of the mandatory settlement conference scheduled for Friday, August 28, 2026, the Court will not post a tentative ruling in this case. If the matter does not settle, the Court will provide a tentative ruling to the parties before the hearing on August 31, 2026.
107	Doe v. Goodwill of Orange County, 2023-01341615	MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT – GRANTED Defendant Sodexo Management, Inc. (Sodexo) moves for an order determining that the settlement between Plaintiff Jane Doe (Plaintiff) and Sodexo was made in good faith pursuant to Code of Civil Procedure section 877.6. Defendant Goodwill of Orange County (Goodwill) opposes the motion. The determination of a good faith settlement under section 877.6 require this Court to consider factors including: • A rough approximation of plaintiffs’ total recovery and the settlor’s proportionate liability, • The amount paid in settlement, • The allocation of settlement proceeds among plaintiffs,